

25NNCV03013 25NNCV03013

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-07

Motion: DEFENDANT CITY OF ALHAMBRA'S MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR PRODUCTION

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C08%2F07%2F2026

Source SHA-256: b19f87034f363b2539716f82ac524fd85d957f66c40e69b4b05bb70cdfb4e576

Case Number: 25NNCV03013 Hearing Date: August 7, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANNE CHO,

Plaintiff(s),

vs.

CITY OF
ALHAMBRA, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25NNCV03013

[TENTATIVE]

ORDER RE: DEFENDANT CITY OF ALHAMBRA'S MOTION TO COMPEL PLAINTIFF'S
FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR PRODUCTION

Dept.

3

8:30

a.m.

August 7,

2026

)

Defendant City of Alhambra ("Defendant") moves for an order compelling plaintiff Anne Cho ("Plaintiff") to serve further responses to Requests for Production Nos. 30-34, 37, and 38. This action arises from a slip and fall that occurred on the stairs of a parking structure.

Defendant's

document requests seek: (1) text messages that Plaintiff sent and/or received in the hour before and the hour after the alleged incident as well as

Plaintiff's cell phone records for the day of the incident, (2) all communications she has had with any person regarding the incident, and (3) all documents that relate to all other accidents Plaintiff has been involved in since the incident.

On

July 24, 2026, Plaintiff served amended responses, but Defendant contends that the motion is not moot because her responses to Requests Nos. 37 and 38 are deficient and a further response should be compelled. (Reply, p. 10.)

Request

No. 37 seeks Plaintiff's communications with any person regarding the incident at any time. Plaintiff's most recently-served response contains a Code-compliant statement of her inability to comply with the document request; Plaintiff specifies that she cannot comply with the request because she does not believe any non-privileged responsive document has ever existed.

Request

No. 38 seeks documents relating to any and all accidents she has been involved in since the incident on February 7, 2024, including motor vehicle accidents and slip-and-falls. Defendant argues that Plaintiff is being evasive because she states that no responsive documents exist, other than those she already produced regarding a dog bite and an accident with a fitness pole, since "there has been no other injury accident since the [incident]."

Defendant

argues that the request for production seeks documents regarding all accidents, not only those accidents in which she was injured. Defense counsel also states in his declaration that Defendant has obtained a report showing that Plaintiff was involved in two motor vehicle collisions in April and December 2024, which were not disclosed in Plaintiff's discovery responses and demonstrate a need to obtain information about those collisions.

The

Court agrees that Plaintiff's response improperly limits the scope of Defendant's request to accidents she claims she was not injured in, however, the request for "all documents" and "all accidents" is too broad. Therefore, the Court orders Plaintiff to serve a further response, within 20 days, agreeing to produce all documents relating to the two motor vehicle accidents that took place on April 9 and December 25, 2024, which are relevant because

Plaintiff is claiming cervical and lumbar spine injuries and these accidents took place after the incident and before she underwent surgery.

The

Court also agrees that sanctions are warranted. Plaintiff's initial responses to Requests Nos. 30-34 were evasive and her attempts to meet and confer were not in good faith. Plaintiff objected to requests on the grounds that they invaded her right to privacy, but now she claims that the documents those requests sought never even existed. Had Plaintiff simply conducted a reasonable search and diligent inquiry at the start and stated that those documents did not exist and could not be produced, motion practice could have been avoided and Defendant would not have had to incur the costs of meeting and conferring and bringing this motion.

Accordingly,

sanctions are imposed on Plaintiff and counsel of record, jointly and severally, in the reduced amount of \$1,260, consisting of 4.2 hours at defense counsel's hourly rate of \$300, payable within 20 days.

Dated

this 7th

day of August 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.